

BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

STATE OF OKLAHOMA, ex re.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE

Petitioner,

vs.

Complaint No. 21-LPC-31

DEBORAH COOK-BOYKINS,
LPC, LICENSE NO. 1399

Respondent.

**ORDER OF REVOCATION OF
PROFESSIONAL COUNSELOR LICENSE**

This matter came on for hearing before the State Board of Behavioral Health Licensure (“the Board”) on August 12, 2022, at Oklahoma Office of Attorney General, 313 N.E. 21st Street, Susan Loving – CR 1008, Oklahoma City, Oklahoma, pursuant to notice given as required by law and rules of the Board.

Liz Stevens, Assistant Attorney General, appeared on behalf of Petitioner. Respondent appeared in person and through counsel, James E. Frasier of Frasier, Frasier & Hickman, LLP. Ms. Stevens for Petitioner and Mr. Frasier for Respondent are herein after referred to as the Parties.

The following exhibits were admitted into evidence.

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|-------------------------|---|
| Petitioner’s Exhibit A: | Plea of No Contest Summary of Facts, filed September 8, 2021 (certified copy) <i>State of Oklahoma v. Deborah Boykins</i> In the District Court of Oklahoma County, State of Oklahoma Case No. CF-2020-5866. Admittance objected to by Respondent. Objection overruled and Petitioner’s Exhibit A admitted. |
| Respondent’s Exhibit A: | E-mail from Melanie Freeman-Johnson to Trevor Reynolds dated July 30, 2021 |
| Respondent’s Exhibit B: | E-mail from Melanie Freeman-Johnson to Trevor Reynolds with cc to Jim Frasier, Adam Burnett, and Liz Stevens dated November 9, 2021 and an E-mail from Trevor Reynolds to Melanie Freeman-Johnson with cc to Jim Frasier, and Adam Burnett dated November 9, 2021 |
| Respondent’s Exhibit C: | Plea of No Contest Summary of Facts, filed September 8, 2021 (certified copy) <i>State of Oklahoma v. Deborah</i> |

Boykins In the District Court of Oklahoma County, State of
Oklahoma Case No. CF-2020-5866

The following witnesses were sworn and testified: Attorney Trevor Reynolds of Tulsa Law Group, PC and Deborah Cook-Boykins.

The Parties waived opening statements. At the conclusion of Petitioner's case the Respondent made a motion for dismissal/demurer. The motion for dismissal/demurrer was denied.

Following closing arguments by the Parties the Board entered into executive session to engage in deliberations, in accordance with 25 O.S. § 307(B)(8) and 75 O.S. § 309(D). Immediately preceding the executive session, the Respondent orally requested that the executive session be recorded. The Petitioner did not object. The Board approved the request for the executive session be recorded but the Board Advisor stated that the recorded executive session is not part of the proceeding record and any request for release of the recording would have to be specifically requested and specifically opened.

The Board, having considered representation of counsel, testimony of the witnesses, exhibits admitted into evidence, and being fully apprised of the premises, makes the following findings of fact, conclusions of law and orders:

FINDINGS OF FACT

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, et seq.
2. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 1399, and was licensed on or about August 1, 1995.
3. On September 8, 2021, Respondent pled No Contest to four (4) counts of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) and one (1) count of Identity Theft in violation of 21 O.S. § 1533.1(B), Oklahoma County case number CF-2020-5866.
4. Respondent was sentenced to a 10-year deferred sentence, prevented from billing Medicaid for duration of sentence, and ordered to pay restitution and other costs.
5. The offer of proof for the no contest plea states that Respondent agrees that the State could prove to a jury that from on or about December 2006 up to May 2019, Respondent committed Medicaid Fraud by submitting fraudulent claims to the Oklahoma Healthcare Authority with a total amount of \$100,435.65 in claims paid and \$6,119.86 in investigation costs to the State and used with fraudulent intent the Medicaid IDs of the clients listed in count five to obtain payment from OHCA in Oklahoma County from December 2016 to May 2019.
6. The Respondent's conduct violated the Oklahoma Licensed Professional Counselors Act, and the applicable Oklahoma Administrative Rules.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in fraud or deceit in connection with services rendered or in establishing needed qualifications pursuant to the provisions of this act, engaged in unprofessional conduct as defined by the rules established by the Board, and/or engaged in negligence or wrongful actions in the performance of his or her duties, pursuant to 59 O.S. § 1912(A)(2), (4), and (5).
3. Any person determined by the Board to have violated any provision of the LPC Act or any Rule related to licensed professional counseling, may be subject to an administrative penalty, not to exceed \$10,000 for any related series of violations, pursuant to 50 O.S. § 1913.1 and OAC 86:10-29-14.
4. The Board found that the Petitioner has proven by clear and convincing evidence that the Respondent is guilty of each of the violations described in the Second Amended Complaint, as follows:
 - a. Respondent's Plea of No Contest to four (4) counts of Medicaid Fraud and one (1) count of Identity Theft shows that Respondent engaged in fraud or deceit in connection with services rendered, that the Respondent engaged in unprofessional conduct as defined by the rules established by the Board, and that Respondent engaged in negligence or wrongful actions in the performance of her duties in violation of 59 O.S. § 1912(A)(2), (4), and (5).
 - b. Respondent's Plea of No Contest to four (4) counts of Medicaid Fraud and one (1) count of Identity Theft showed that Respondent violated OAC 86:10-3-1, and LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit, or misrepresentation.
 - c. Respondent's Pleas of No Contest to four (4) counts of Medicaid Fraud and one (1) count of Identity Theft showed that the Respondent violated OAC 86:10-3-4(a), which provides that it is unprofessional conduct for an LPC to plead no contest to a state or federal felony crime if the violation directly relates to the duties and responsibilities of the counselor and poses a reasonable threat to public safety.
5. The Board adopted the findings of fact and conclusions of law contained within the Second Amended Complaint as the Board's findings of fact and conclusions of law.

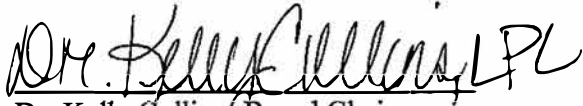
ORDER

IT IS THEREFORE ORDERED by the State Board of Behavioral Health Licensure as follows:

1. The Professional Counselor license of Deborah Cook-Boykins, license no. 1399 is hereby REVOKED.

This Order is subject to review and approval by the Oklahoma Attorney General, pursuant to Executive Order 2015-33, and this Order shall become final upon completion of the review by the Oklahoma Attorney General unless disapproved, in which case this Order shall be null and void.

Dates this 22 day of August, 2022.


Dr. Kelly Collins, Board Chair
State Board of Behavioral Health Licensure

Certificate of Service

This is to certify that on the 5th day of October, 2022, the foregoing instrument was transmitted as indicated, postage prepaid, to the following:

U.S. Certified Mail return receipt requested
Deborah Cook-Boykins
10912 E 75th Pl.
Tulsa, OK 74133

Respondent

U.S. First Class Mail, and Email
James E. Frasier
Frasier, Frasier, & Hickman, LLP
1700 Southwest Blvd
Tulsa, OK 74107
jfrasier@frasierlaw.com
Attorney for Respondent


Eric Ashmore, Executive Director